IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT-IV

ITEM No. 401
CA(CAA)18/ND/2026

IN THE MATTER OF:
Landmark Hi Tech Development Private Limited

...Applicant Company 1 / Transferor Company

AND

Uppal-Chadha Hi-Tech Developers Private Limited,

...Applicant Company 2 / Transferee Company

Under Section 230-232 of the Companies Act, 2013

Order delivered on 28.04.2026

CORAM:
SHRI ASHOK KUMAR BHARDWAJ
HON'BLE MEMBER (JUDICIAL)

SHRI ATUL CHATURVEDI
HON'BLE MEMBER (TECHNICAL)

HYBRID HEARING (PHYSICAL & VC)

PRESENT:

For the Applicant : Mr. Sanjeev Puri, Sr. Adv., Mr. Hardeep Sachdeva, Ms. Priyamvada Shenoy, Ms. Abhyudai Singh, Mr. Gourav Priyadarshi, Mr. Mukund Rawat, Mr. Dwhreen Mohohanty, Mr. Raghav Gopal Das, Mr. Bharat Apte, Advs.

ORAL ORDER

1. The present petition has been preferred under Section 230, 232 of the Companies Act, 2013, seeking dispensing with of the meeting of stakeholders qua both the Transferor Company and Transferee Company.

2. It is the case of the Applicants that the Transferor Company is 100% subsidiary of the Transferee Company. The factual position regarding the proposed scheme of amalgamation and the details of both the companies have been mentioned in Para-7 to 42 of the petition, which reads thus:-

7.	The proposed scheme of amalgamation between the Applicant Company 1 and the Applicant Company 2 (**"Scheme"**) has been presented pursuant to the provisions of Sections 230 to 232 read with Section 66 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 and Section 2(1B) (Section 2(6) of the Income Tax Act, 2025) and other applicable provisions of the Income-tax Act, 1961, for the amalgamation of Applicant Company 1 with Applicant Company 2 on a going concern basis. Additionally, the Scheme also provides for various other matters consequential or otherwise integrally connected with the Scheme.

8.	A copy of the Scheme is annexed herewith as **ANNEXURE-A1**.
9.	Capitalized terms used in this Joint Application but not defined shall have the meaning assigned to them in the Scheme unless otherwise stated.
10.	Applicant Company 1 is a wholly owned subsidiary of the Applicant Company 2.
11.	It is submitted that the equity shares of Applicant Company 1 and Applicant Company 2 are not listed on any stock exchange and neither do the Applicant Companies have any listed securities/ debentures.

DETAILS OF THE APPLICANT COMPANY 1

12. The Applicant Company 1 was incorporated as a private limited company under the name Sukhad Properties Private Limited on August 28, 2006, under the provisions of the Companies Act, 1956 in the State of New Delhi vide certificate of incorporation issued by the Registrar of Companies, New Delhi (CIN: U70109DL2006PTC152606). The registered office of the Company at the time of incorporation was situated at 11th Floor, Narain Manzil, 23, Barakhamba Road, New Delhi–110001, Delhi, India. Subsequently, the name of the Company was changed to Landmark Hi Tech Development Private Limited on June 14, 2007, and thereafter, the registered office of the Company was shifted to Mezzanine Floor, M-4, South Extension Part-II, New Delhi–110049, Delhi, India with effect from June 10, 2019, where it is presently situated.

13. Copies of the Master Data, the Certificate of Incorporation dated August 28, 2006, along with copies of the Memorandum of Association and Articles of Association of the Applicant Company 1 are annexed herewith as **ANNEXURE-A2**.

14. The authorized, issued, subscribed and fully paid-up share

capital of the Applicant Company 1 as on March 18, 2026, is as under:

Authorized Share Capital	Amount (in Rs.)
70,00,000 Equity Shares of Rs. 10/- each	7,00,00,000
Total	**7,00,00,000**

Issued, subscribed and paid-up Share Capital	Amount (in Rs.)
67,93,430 Equity Shares of Rs. 10/- each	6,79,34,300
Total	**6,79,34,300**

15. The issued, subscribed and fully paid-up equity share capital of Applicant Company 1, as on March 18, 2026, is held as under:

S. No.	Equity Shareholder	No. of Equity Shares	Percentage of Total Equity Shareholding
1.	Uppal-Chadha Hi-Tech Developers Private Limited	67,93,429	100%*
2.	Shri Rajiv Gupta*	1*	-
Total		**67,93,430**	**100%**

** Nominee of Uppal-Chadha Hi-Tech Developers Private Limited, the beneficial ownership of this share is held by Uppal-Chadha Hi-Tech Developers Private Limited.*

16. The Applicant Company 1 is engaged in the real estate business.

17. The Applicant Company 1 is *inter alia*, in the business: (i) as owners, builders, colonizers, developers, promoters, proprietors, interior decorators, civil contractors and maintainer of a residential, commercial and industrial buildings, malls, multiplexes, township projects, colonies, stone crusher, mills and factory's sheds and buildings, workshop's buildings cinemas' houses buildings and to deal in all kinds of immovable properties whether belonging to the company or not; (ii) to undertake and carry on the business of purchasing, selling and developing any type of land or plot whether residential, commercial, industrial, rural or urban that may belong to company or to any other person of whatever nature and, to deal in land or immovable properties of any description or-nature on commission basis and for that purpose to make agreements to sell the land of the company or of anybody else.

18. Clause 22 of the memorandum of association of the Applicant Company 1 permits the amalgamation envisaged under the Scheme and the same has been extracted below:

"22. Subject to the provisions of the Companies Act, 2013 and the rules made thereunder, to enter into any arrangement, amalgamation, merger, demerger, partnership, joint venture, cooperation or any other form of business association, or to share profits, union of interest or reciprocal arrangements, with any person, firm or company carrying on or engaged in any business which may be considered to be allied, complementary or conducive to the main objects of the Company."

19. A copy of the standalone, audited financial statements of Applicant Company 1 for the financial year ended March 31, 2025, is annexed herewith as **ANNEXURE-A3.**

20. A copy of the standalone, unaudited financial statements of the Applicant Company 1 for the period April 01, 2025 to December 31, 2025, is annexed herewith as **ANNEXURE-A4.**

21. The board of directors of the Applicant Company 1 has at its meeting held on March 18, 2026, *inter alia*, approved the Scheme and the filing thereof with this Hon'ble Tribunal. A certified extract of the resolution dated March 18, 2026 passed by the board of directors of the Applicant Company 1, *inter alia*, approving the Scheme is annexed herewith as **ANNEXURE-A5.**

22. A Certificate issued by a Chartered Accountant certifying the list of directors of the Applicant Company 1 as on March 18, 2026, is annexed herewith as **ANNEXURE-A6.**

23. It is submitted that the Applicant Company 2 with its nominee holds the entire equity share capital of Applicant Company 1.

24. A Certificate issued by a Chartered Accountant certifying the list of shareholders of the Applicant Company 1 as on March 18, 2026, along with consent affidavits executed by both the equity shareholders of the Applicant Company 1 approving the Scheme for seeking dispensation from holding the meeting of the equity shareholders of the Applicant Company 1 are annexed herewith as **ANNEXURE-A7** and **ANNEXURE-A8 (COLLY.)**, respectively.

25. Accordingly, this Hon'ble Tribunal may be pleased to pass directions, as prayed for herein, for dispensing with the meeting of equity shareholders of Applicant Company 1 in view of the consent affidavits executed by both equity shareholders of Applicant Company 1.

26. It is submitted that since the Applicant Company 1 has no preference shareholders, the requirement of convening the preference shareholders' meeting of Applicant Company 1 does not arise.

27. It is submitted that as on February 28, 2026, the Applicant Company 1 has no secured creditors. A Certificate issued by a Chartered Accountant certifying that the Applicant Company 1 has no secured creditors as on February 28, 2026 is annexed herewith as **ANNEXURE-A9**. Accordingly, since the Applicant Company 1 has no secured creditors, the requirement of convening the meeting of the secured

creditors of the Applicant Company 1 does not arise in the instant case.

28. It is submitted that as on February 28, 2026, the Applicant Company 1 has a single unsecured creditor representing a total outstanding unsecured debt of Rs. 29,00,000/- (Rupees Twenty-Nine Lakh Only). A Certificate issued by a Chartered Accountant certifying the list of unsecured creditor of Applicant Company 1 as on February 28, 2026 is annexed herewith as **ANNEXURE-A10.**

29. The consent affidavit executed by the sole unsecured creditor of the Applicant Company 1 approving the Scheme for the purposes of seeking dispensation from holding the meeting of the unsecured creditors of the Applicant Company 1 is annexed herewith as **ANNEXURE-A11.**

30. It is submitted that Applicant Company 1 has no debenture holders.

31. The affidavit on behalf of Applicant Company 1, in relation to material investigations or proceedings filed against the Applicant Company 1 is annexed herewith as **ANNEXURE-A12.**

32. Certificate dated March 24, 2026 issued by M A R K S A N & CO, Chartered Accountants, the statutory auditor of the Applicant Company 1 in terms of the provisos to Sections 230(7) and 232(3) of the Companies Act, 2013 certifying that, as the Applicant Company 1 is the Transferor Company and will cease to exist upon the Scheme becoming effective, no report confirming the accounting treatment in the Transferor Company's books regarding the amalgamation is required, is annexed herewith as **ANNEXURE-A13.**

33. The details of the applicable statutory authorities/ sectoral regulators to whom notices are to be sent pursuant to Section 230(5) of the Companies Act, 2013 read with Rule 8 of the Rules have been set out in a separate affidavit deposed by the authorized representative of the Applicant Company 1 which is annexed herewith as **ANNEXURE-A14.**

34. It is submitted that no investigation proceedings are pending in relation to the Applicant Company 1 under Sections 235 to 251 of the Companies Act, 1956 or under Sections 210 to 227 of the Companies Act, 2013. Affidavit of the Applicant Company 1 in relation to Section 230(2) of the Companies Act, 2013 is annexed herewith and marked as **ANNEXURE-A15**.

35. It is submitted that to the knowledge of the Applicant Company 1, no winding-up petition (including under Section 433 read with Section 434 of the Companies Act, 1956) and/ or insolvency proceedings under the Insolvency and Bankruptcy Code, 2016 are pending against the Applicant Company 1.

36. It is submitted that none of the directors of the Applicant Company 1 have any material interest in the Scheme except to the extent of their directorships in the Applicant Company 1 and no such directors have any shareholding in the Applicant Company 1.

37. It is submitted that as of the Appointed Date and the Effective Date, the Applicant Company 1 does not have any employees on its rolls and will continue to not have any employees on its rolls, respectively. Consequently, no employees shall be transferred to, or assumed by, the Applicant Company 2 pursuant to this Scheme, and no liabilities, obligations, or claims relating to employment matters shall arise or be transferred as a result of this Scheme becoming effective.

DETAILS OF THE APPLICANT COMPANY 2

38. The Applicant Company 2 was incorporated as a private limited company under its present name on September 2, 2004, under the provisions of the Companies Act, 1956, in the State of New Delhi vide certificate of incorporation issued by the Registrar of Companies, New Delhi (CIN U45201DL2004PTC128784). The registered office of the Transferee Company is situated at First Floor, M-4, South Extension Part-II, South Delhi, New Delhi, Delhi, India, 110049.

39. Copies of the master data and the certificate of incorporation dated September 02, 2004, along with copies of the latest memorandum of association and articles of association of the Applicant Company 2 are annexed herewith and marked as **ANNEXURE-A17 (COLLY.)**.

40. The authorized, issued, subscribed and fully paid-up share capital of the Applicant Company 2 as on March 16, 2026, is as under:

Authorized Share Capital	Amount (in Rs.)
5,67,70,000 Equity Shares of Rs. 10/- each	56,77,00,000
Total	**56,77,00,000**

41. The issued, subscribed and fully paid-up equity share capital of Applicant Company 2, as on March 16, 2026, is held as under:

S. No.	Equity Shareholder	No. of Equity Shares	Percentage of Total Equity Shareholding
1.	Zinnia Promoters & Developers Private Limited	3,99,99,998	93.29%
2.	Shri Rajinder Singh Chadha	1*	-
3.	Shri Sanjeev Jain	1*	-
4.	JKG Infradevelopers Private Limited	9,59,079	2.24%
5.	JG Buildwell Private Limited	9,59,079	2.24%
6.	GSK Construction & Builders Private Limited	9,59,079	2.23%
	Total	**4,28,77,237**	**100.00%**

** Nominee of Zinnia Promoters & Developers Private Limited, the beneficial ownership of this share is held by Zinnia Promoters & Developers Private Limited.*

42. The Applicant Company 2 engages, *inter alia*, in the business to build, contract, establish, own, purchase, lease, exchange, sell, hire, let, sublet, mortgage or otherwise acquire, hold, maintain and manage or otherwise dispose of any type of land or plot whether residential, commercial, agricultural, industrial, factory premises, godowns, warehouses, rural or urban farm houses, apartments/flats, houses, buildings, shopping complexes/malls, shoppers plazas, huts bazaars and markets, melas & exhibitions multiplexes, cineplex's or other show houses, meetings or lecture halls, libraries, health resorts and sanatoriums, gardens, swimming pools, pleasure grounds, amusement parks, IT parks, rides, sports & water parks, hotels, motels, hostels, boarding houses, clubs and restaurants and immovable property of every description or nature and tenure along with the movable property to be installed thereat including plants and machinery, equipment etc. and to deal in the land or immovable properties of any description or nature and tenure on commission basis or otherwise.

3. The Applicant has placed on record the certificates issued by the Chartered Accountant regarding the stakeholders viz Secured Creditors, Unsecured Creditors of both the companies. The certificates are available on record at Page-194, 195, 369 and 370 of the petition. The Applicant has uploaded on DMS a convenience chart indicating therein that as far as the Transferor Company is concerned, when 100% shareholders and 100% unsecured Creditors have assented to the scheme, the company has no secured creditors. In his submissions, since the Transferee Company will remain in existence and it is 100% holding company qua the subsidiary company, the scheme of amalgamation will not prejudice the interest of Secured and Unsecured Creditors.

4. According to him, 93.29% shareholders of the Transferee Company have already assented to the scheme of amalgamation. In terms of the provisions of Section 230(6) of the Companies Act, 2013, a scheme of amalgamation needs consent from three-fourths (75% of the shareholders).

5. Nevertheless, the Secured Creditors and Unsecured Creditors qua the Transferee Company have not assented to the scheme. The relevant excerpt of the convenience compilation filed on behalf of the Applicant's reads thus:-

Convenience chart for Amalgamation of Landmark Hi Tech Development Private Limited (Transferor Company) and Uppal Chadha Hi- Tech Developers Private Limited (Transferee Company) in terms of the order dated 21.04.2026 passed by this Hon'ble Tribunal

Name	Particulars/ Category	Total No.	Consent Received	Page No.
Landmark Hi Tech Development Private	SHAREHOLDERS	2 (No. of Shares: 67,93,430)	2 (**100%**)	**List of shareholders (2 shareholders i.e., Uppal Chadha and Mr. Rajiv**

Limited (Transferor Company) ("Landmark")				**Gupta)** - *@Pg. 185, Vol. II of the Application* **Consent Affidavits:** **Rajiv Gupta** - *@Pg. 186, Vol II of the Application* **Uppal Chadha** - *@Pg. 189, Vol II of the Application.*
	SECURED CREDITORS	NIL	NIL	**Certification regarding no secured creditor** *@Pg. 194, Vol. II of the Application*
	UNSECURED CREDITORS	1 (Total Value: Rs. 29,00,000/-)	1 **(100%)**	**Certification regarding Unsecured Creditor** *@Pg. 195, Vol. II of the Application.* **Affidavit for approval and dispensing the requirement of convening the unsecured creditors meeting** - *@Pg. 197, Vol. II of the Application*
Uppal Chadha Hi- Tech Developers Private Limited (Transferee Company) ("Uppal Chadha")	SHAREHOLDERS	6 (No of shares: 4,28,77,237)	2 **(93.29%)** (Shareholders holding 3,99,99,999 Shares)	**List of Shareholders** *@Pg. 358. Vol. III of the Application* **Affidavits of Equity Shareholders for providing consent to the scheme of arrangement:** **Sanjiv Jain -** *@Pg. 360, Vol. III of the Application* **Zinnia Promoters & Developers Private Limited** - *@Pg. 364, Vol. III of the Application*
	SECURED CREDITORS	29 (Total Value: Rs. 51,91,41,473/-)	NA	**Certification regarding Secured Creditors in Uppal Chadha** - *@Pg. 369, Vol. III of the Application*
	UNSECURED CREDITORS	340 (Total Value: Rs. 1,38,82,14,173/-)	NA	**Certification regarding unsecured creditors in Uppal Chadha -** *@Pg. 372, Vol. III of the Application*

6. Normally in terms of the provisions of Section 230(9) of the Companies Act, 2013, the meeting of the creditors can be dispensed with only when 90% of the creditors have assented to the scheme. The Companies Act does not envisage dispensing with both the requirement of consent as also meeting of the Secured Creditors qua any of the companies.

7. However, having relied upon the judgement of Honb'le NCLAT in ***Mohit Agro Commidites Pvt Ltd. and Gujarat Ambuja Exports Ltd., Company Appeal (AT) No. 59 of 2021,*** the Ld. Counsel for the Applicant espoused that when the scheme would not prejudicially affect the creditors or shareholders of the Applicant Companies, and the rights of the equity shareholders of Transferee Company are not affected, this Tribunal may dispense with the requirement of consent affidavit as well as the meeting of the stakeholders qua the Transferee Company. Para- 18 to 21 of the order reads thus:

> ***"18. The material on record establishes that the Transferee Company' is a Wholly Owned Subsidiary of the Transferor Company' and there is no issuance of any new shares and therefore there is no reorganization of share capital and consequently no arrangement wherein Shareholders have to compromise with Creditors of the Transferor Company'. The documentary evidence substantiates that the net worth of the Transferee Company' is definitely positive.***
>
> ***19. We find force in the contention of the Learned Counsel appearing for the Appellants that there are no Creditors in the subsidiary Companies and that the Transferee Company' is the only Shareholder of the Transferor Company'.***
>
> ***20. This Tribunal has placed reliance in 'DLF Phase IV, Commercial Developers Limited and Ors.' in Company Appeal (AT) No. 180 of 2019 and observed that the scheme would not prejudicially affect the Creditors or Shareholders of the Appellant Company when an Application is filed by the Transferor Company' or***

Transferee Company', a separate Application is not necessary and dispensed with the meeting of the equity Shareholders and Creditors of the Appellant Company. At the cost of repetition, keeping in view that the financial position of the Transferee Company' is highly positive, the merger does not involve any compromise/arrangement with any Creditor of the Company, that there would be a positive net worth and Creditors would not be compromised, the Tribunal ought to have exercised the discretion in dispensing with the requirement of convening the meeting which would facilitate ease of doing business and save time and resources. To reiterate, we observe that the rights and liabilities of Secured and Unsecured Creditors were not getting affected in any manner by way of the proposed scheme as no new shares are being issued by the Transferor Company' and no compromise is offered to any Secured and Unsecured Creditors of the Transferee Company'.

Therefore, we are of the considered view that when the Transferor and Transferee Company' involve a parent Company and a Wholly Owned Subsidiary the meeting of Equity Shareholders, Secured Creditors and Unsecured Creditors can be dispensed with as the facts of this case substantiate that the rights of the Equity Shareholders of the Transferee Company' are not being affected.

21. For all the aforenoted reasons, we allow this Application and set aside the direction in respect of the Transferee Company issued by the NCLT, to convene the meetings of the Equity Shareholders, Secured Creditors and Unsecured Creditors on 22.04.2021."

8. Ld. Counsel for the Applicants could also draw our attention to the certificates of the Transferee Company. At this stage, the net worth of the Transferee company is Rs. 1017,73,78,861/- and after amalgamation the same would be 805,37,40,299/- The

pre and post net worth certificates have been placed on record collectively at Annexure A-30, which reads thus:

ANNEXURE-A30 407

D ROHATGI & ASSOCIATES

B-17, III Floor, Panchsheel Vihar
Malviya Nagar, New Delhi-110017
Email:cadhiraj.rohatgi@gmail.com
Ph. No.9711918758

Networth Certificate

This is to certify that Net Worth of M/s. Uppal-Chadha Hi-Tech Developers Private Limited having Corporate Identification Number - U45201DL2004PTC128784 and having its registered office address at First Floor, M-4, South Extension Part-II, New Delhi, India-110049 has been calculated as under:

Net Worth as on 31.12.2025

Particulars	**Amount (in Rs.)**
Equity Share Capital	**42,87,72,370/-**
Add: Other Equity	**9,74,86,06,491/-**
Less: Accumulated losses, if any	**NiL**
Less: Miscellaneous Expenditure	**Nil**
Total Net Worth	**1017,73,78,861**

Book Value per share (in Rs.) *Total Networth / Total number of outstanding shares*	**Rs 237.36**

Net Worth is calculated as per provisional balance sheet as at 31.12.2025 duly signed by Directors of the company.

This is to certify that the above mentioned information is true to the best of my knowledge and belief, according to the books and documents produced before me for verification.

For **D ROHATGI & ASSOCIATES**
Chartered Accountants
Firm Registration No. 023715N

Dhiraj Rohatgi
Proprietor
Membership No.: 078723

Date: 26.03.2026
Place: New Delhi

UDIN: 26078723BHGQI6840

D ROHATGI & ASSOCIATES
B-17, III Floor, Panchsheel Vihar
Malviya Nagar, New Delhi-110017
Email:cadhiraj.rohatgi@gmail.com
Ph. No.9711918758

Networth Certificate

This certificate is being issued on the request of the Company for the purpose of the scheme of amalgamation between Landmark Hi Tech Development Private Limited and Uppal-Chadha Hi-Tech Developers Private Limited and their respective shareholders

This is to certify that Post Scheme Provisional Net Worth of M/s. Uppal-Chadha Hi-Tech Developers Private Limited having Corporate Identification Number - U45201DL2004PTC128784 and having its registered office address at First Floor, M-4, South Extension Part-II, New Delhi, India-110049 is as under:

Net Worth as on 31.12.2025

Particulars	**Amount (in Rs.)**
Equity Share Capital	**42,87,72,370/-**
Add: Other Equity	**7,62,49,67,929/-**
Less: Accumulated losses, if any	**NiL**
Less: Miscellaneous Expenditure	**Nil**
Total Net Worth	**805,37,40,299/-**

Book Value per share (in Rs.) *Total Networth / Total number of outstanding shares*	**Rs 187.83**

Net Worth is calculated as per the Statement containing details of Post scheme provisional Networth as on 31.12.2025 duly signed by Directors of the company.

This is to certify that the above mentioned information is true to the best of my knowledge and belief, according to the books and documents produced before me for verification.

For **D ROHATGI & ASSOCIATES**
Chartered Accountants
Firm Registration No. 023715N

New Delhi

Dhiraj Rohatgi
Proprietor
Membership No.: 078723

Date: 06.04.2026
Place: New Delhi

UDIN: 26078723TQLUQU3208

Uppal Chadha Hi-Tech Developers Pvt. Ltd.

9. In the wake of the aforementioned, particularly the fact that the Transferor Company is subsidiary of the Transferee Company and the net worth of the Transferee Company is positive, we dispense with the meeting of the stakeholders qua both the companies.

10. However, it is made clear that in the event of there being any objection by any of the stakeholders qua the Transferee Company, the present order would become non est in law.

11. Let the present order be published in terms of the provisions of Section 230(3) of Companies Act, 2013 for information of all the stakeholders viz., Creditors, Shareholders and the Regulators.

12. The application i.e. **CA(CAA)18/ND/2026** stands **disposed of.**

-Sd-
(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

-Sd-
(ASHOK KUMAR BHARDWAJ)
MEMBER (JUDICIAL)

Mamta/Amisha